

# In the
# Court of Appeals
# Sixth Appellate District of Texas at Texarkana

No. 06-26-00161-CR

IVAN ANTHONY CRAIG FERRELL, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 115th District Court
Upshur County, Texas
Trial Court No. 19142

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

## MEMORANDUM OPINION

Ivan Anthony Craig Ferrell has filed an untimely notice of appeal from the trial court's judgment in this matter. We dismiss the appeal for want of jurisdiction.

The judgment of conviction in this matter indicates that the trial court imposed Ferrell's sentence on January 10, 2022. Because Ferrell did not file a motion for new trial, his notice of appeal was due on or before February 9, 2022. *See* TEX. R. APP. P. 26.2(a)(1). Ferrell did not file his notice of appeal until September 9, 2026, well beyond the February 9, 2022, deadline. Consequently, Ferrell's attempt to appeal his conviction in this matter was untimely.

The Texas Court of Criminal Appeals has expressly held that, without a timely filed notice of appeal, we cannot exercise jurisdiction over an appeal. *Olivo v. State*, 918 S.W.2d 519, 522 (Tex. Crim. App. 1996); *Slaton v. State*, 981 S.W.2d 208, 209 n.3 (Tex. Crim. App. 1998) (per curiam).

On September 18, 2026, we notified Ferrell by letter that his notice of appeal appeared to be untimely and that the appeal was subject to dismissal for want of jurisdiction. We gave Ferrell ten days to respond to our letter and to demonstrate how we had jurisdiction over the appeal notwithstanding the noted defect. Ferrell did not file a response to our letter.

Because Ferrell has not timely perfected his appeal, we dismiss the appeal for want of jurisdiction.

Scott E. Stevens
Chief Justice

Date Submitted: October 8, 2026
Date Decided: October 9, 2026

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